

Arif Ali Khan v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 9 December 2024 · 2024:AHC:192744-DB · Writ - C No. 40730 of 2024 · **Liberty to file a fresh clause 6.5 representation; merits not examined**

HEADNOTE

On the parties' agreement that a disputed electricity demand is redressable under clause 6.5 of the U.P. Electricity Supply Code, 2005, the writ seeking quashing of the demand is disposed of without examination of the merits, with liberty to file a fresh representation before the Executive Engineer within ten days, to be decided on merits, and with coercive action stayed for one month or until that decision, whichever is earlier.

FACTUAL SUMMARY

Arif Ali Khan filed a writ against the State of Uttar Pradesh and Dakshinanchal Vidyut Vitran Nigam Ltd after the Executive Engineer, Electricity Distribution Khand Second, Mainpuri, raised a demand of Rs 28,32,114 by order dated 4 October 2024. He asked the Court to quash that demand, restrain coercive recovery, and direct the Executive Engineer to decide his representation dated 16 November 2024.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Disputed demand relegated to a fresh clause 6.5 representation before the Executive Engineer

HOLDING

On the parties' agreement that the grievance against the demand could be redressed under clause 6.5 of the U.P. Electricity Supply Code, 2005, the writ was disposed of without any examination of the merits. The petitioner may, within ten days, file a fresh complaint or representation under that clause before the Executive Engineer who issued the demand, and if so filed the Engineer shall decide it on merits in accordance with the Code. Coercive action on the demand dated 4 October 2024 shall not be taken for one month or until disposal of that representation, whichever is earlier. ¶ 3-7

PRINCIPLE TAGS

article-226-alternate-remedy-up-supply-code-6.5 Both sides agreed that the challenge to the demand order was redressable under clause 6.5, and the writ was disposed of on that alternate remedy without a decision on the demand. ¶ 3-4

clause-6.5-representation-executive-engineer A fresh complaint or representation under clause 6.5 is to be filed within ten days before the Executive Engineer, Electricity Distribution Khand Second, Mainpuri, who must decide it on merits. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND OF RS 28,32,114 DATED 4 OCTOBER 2024 IS CORRECT

Left to the Executive Engineer on a fresh clause 6.5 representation. The Court stated that it had not considered the petitioner's claim on merits. ¶ 7